

26STCV05442 26STCV05442

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-10

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Case Number: 26STCV05442 Hearing Date: July 10, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV05442

DANIEL

LOPEZ vs OLD REPUBLIC SURETY COMPANY

July

10, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT'S MOTION TO SET ASIDE DEFAULT AND ANY DEFAULT JUDGMENT PURSUANT TO
CODE OF CIVIL PROCEDURE § 473(b).

RULING:

The Court grants the Motion.

The Court vacates and sets aside default entered against DEFENDANT OLD REPUBLIC SURETY COMPANY on November 10, 2026.

Defendant may serve and file the Proposed Answer, as a separate document, within five days.

I.

BACKGROUND

On February 20, 2026, DANIEL LOPEZ (Plaintiff), a self-represented litigant, filed a Complaint against Old Republic Surety Company (Defendant), listing Causes of Action for:

1.

VIOLATION OF VEHICLE CODE § 11711; and

2.

ENFORCEMENT OF MOTOR VEHICLE BOND.

Plaintiff alleges that Defendant denied Plaintiff's valid statutory bond claim, pursuant to California Vehicle Code § 11711, arising out of fraud and statutory violations committed by Brooke LA Auto Sales, LLC, during a bonded motor vehicle transaction.

On June 5, 2026, Defendant filed the Motion to Set Aside Default, on grounds of miscalendaring and counsel's admission of fault. (See Kenneth S. Humphrey Declaration, filed June 5, 2026.)

Plaintiff advocates denial or ordering just conditions for relief.

II.

LEGAL STANDARD

Code of Civil Procedure

section 473, subdivision (b) provides: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect...." For discretionary relief, it may be an abuse of discretion to grant relief under Code of Civil Procedure section 473 where there is unexplained delay of over three months before moving for relief. (Huh v. Wang (2008) 158 Cal.App.4th 1406, 1421, fn.4.)

Judges must vacate

dismissals, default entries, and default judgments "whenever (1) an application is made no more than six months after entry of judgment, (2) the application is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, and (3) the attorney's mistake, inadvertence, surprise or neglect in fact caused the dismissal or entry of default." (Benedict v. Danner Press (2001) 87 Cal.App.4th 923, 927 [citing Code Civ. Proc., § 473, subd. (b)]. Accord, Wagner v. Wagner (2008) 162 Cal.App.4th 249, 258.) A motion based on a declaration of attorney fault need not show diligence, and is timely if filed within six months of entry of the ruling or judgment. (Younessi v. Woolf (2016) 244 Cal.App.4th 1137, 1147.)

Attorneys' or staff's

calendaring errors can support relief, if excusable under appropriate circumstances. (Comunidad en Accion v. Los Angeles City Council (2013) 219 Cal.App.4th 1116, 1133-1135 ["trial court abused its discretion in denying ... relief from default. The one-week delay in requesting a hearing was an isolated mistake in an otherwise vigorous and thorough presentation of ... claims.... [T]he lead attorney made a single calendaring error, not a series of errors resulting from disorganization."].) "Discretionary relief need not be granted for 'errors by [counsel] ... in failing to calendar and appear' at a hearing." (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1424.)

Orders denying relief

under Code of Civil Procedure section 473 are scrutinized on appeal more carefully than orders granting and enabling a resolution on the merits. (E.g., Henderson v. Pacific Gas and Elec. Co. (2010) 187 Cal.App.4th 215, 230.)

Relief can be conditioned

upon just conditions, such as payment of costs, and sanctions. (Code Civ. Proc., § 473, subds. (b), (c).) Payment is mandatory if relief is based upon an attorney affidavit of fault. (Code Civ. Proc., § 473, subd. (b).) Just conditions for default relief generally “may only redress costs incurred as a result of the default. (Shapiro v. Clark (2008) 164 Cal.App.4th 1128, 1147-1148.) Whenever relief is based upon an attorney’s affidavit of fault, the court must order the attorney to pay reasonable legal fees and costs of the opposing side, and may order penalties of up to \$1,000. (Solv-All v. Superior Court (2005) 131 Cal.App.4th 1003, 1009, fn.7 [citing Code Civ. Proc., § 473, subds. (b) and (c)].)

III.

ANALYSIS

By motion filed June 5, 2026, Defendant requests relief from Entry of Default and any Judgment, because counsel erred in computer calendaring, the Answer purportedly was filed on April 22, 2026 without knowledge that the Request for Entry of Default was already filed on April 10, 2026.

Plaintiff opposes, based upon counterarguments such as that Defendant had notice of the default by April 14, 2026, delayed almost seven weeks to file the Motion, filed the Answer later than the miscalculated deadline, neglectfully failed to confirm default status with the Court Clerk, and has not shown excusable neglect. Alternatively, Plaintiff requests that the relief be accompanied by just conditions.

Here, Defendant shows admission of fault in support of mandatory relief, and miscalendaring in support of discretionary relief.

For relief based on attorney fault, it is mandatory that the attorney to pay reasonable legal fees and costs of the opposing side. However, Plaintiff has filed no evidence to support any award amount of legal fees or costs. Indeed, the proposed Form Default Judgment, received June 26, 2026, at paragraph 6, Plaintiff states “\$0” as to attorneys’ fees and costs.

IV.

CONCLUSION

Therefore, the Court grants
the Motion, for reasons set forth above.